Water as a Human Right:

Conflict Over a Basic Necessity

University of Utah

Andrew Reeve

Introduction

Water rights and the access to clean potable water throughout the world has become an increasingly important topic. Important questions are raised on who has access to water, how the state controls water rights, and to what extent water should be a common or private good. The purpose of this paper is to address key questions concerning the state and its role in providing access to water. The first important question that will be addressed will be the role of the state and how it has provided or hindered the access of water to its citizenry. This question will look at to what extent the state should provide access to water and whether the state should have any role in defining who has and does not have the right to access. Furthermore this paper will address to what extent have states created mechanisms and institutions in which water rights are defined and protected.

Second, the question of whether access to water should be privatized and driven by capitalist mechanisms in a market economy or provided as a common good to all members of a given state. Is water an intrinsic human right, or should it be a commoditized good? International law has increasingly tried to address the issue of water as a human right. Although not explicitly mentioned in international law and treaties, the rights that are provided for by international law seem to have an underlying connection to water with mention of the human right to water in comments provided by United Nations Councils. Furthermore the paper will look into the linkages between poverty, underdevelopment, and access to safe water.

This paper will take a sociological point of view to examine and articulate the role the state has in providing access to water and what can be done in the future by states in order to address the problem of access to safe potable water.

Defining Water as a Human Right

To begin we will examine the impact the state has on providing access to water to its constituency. Although water is seen as a local commodity that should be governed by regional and local managers, it is important to note that the international community has increasingly addressed the issue. We can see this noted in a comment discourse in Ecology Law Quarterly stating that “the international community has therefore begun to recognize water as a human right under the theory that a human right to water demands that states provide access to water even to those who can not afford it under the full cost recovery principle” (Bluemel, 2004, p. 963). The key issue here, as will be discussed later on, is the ability for a state to regain the costs that are accrued with the maintenance and operation of water distribution systems. Because water is so essential to the livelihood and wellbeing of humankind, states must implement plans that allow for the access to water. If they do not, the further development of the state is at stake. If access to water is not a paramount issue for a state, individuals will not be able to provide to the economy in the form of a healthily working class. States will also see an increase in health care costs as the population of the developing world grows and will be stuck in the cycle of poverty that will not provide for beneficial state development.

However it must be noted that on a global level, defining water as a human right is problematic. Lyla Mehta in a chapter entitled *Problems of Publicness and Access Rights: Perspectives from the Water Domain* discusses the key issues regarding water. When asking the question if water is a global public good she says, “To qualify as a global public good, a goods benefits must be quasi-universal” (Mehta, 2003, p. 559). She continues, “because access to water is mediated by power relations, it is highly unequal. Water is also a highly contested resource that is engendering active political and economic debates” (Mehta, 2003, p. 561). The issue is of

key importance. Because water is a contested issue, states in the international system find the good being regulated on a local level and thus disqualifying it as a global public good. Mehta notes, “Public policy at the international level has focused on the neglect of demand management in water supply and sanitation, particularly in developing countries” (Mehta, 2003, p. 562). Therefore states need to act in a more cohesive manner in which the issue of water and its management can be achieved through state cooperation.

Although water may not be a global public good, it is still seen as a human right. International organizations have looked at this issue of water as a human right. In this sense, the United Nations (UN) has pushed for the development of international human rights. One right that is not explicitly mentioned in any binding international treaties is that of water. However it can be noted, “the varieties of attempts to formulate and clarify an international human right to water serve an important role in entrenching a human right to water within international law” (Hammer, 2004, p. 132). Although the right to water is not explicitly mentioned in the International Covenant on Economic, Social and Cultural Rights (ICESC), there has been a push by the UN to further define water as a human right. This was expressed when the Economic and Social Council (ECOSOC) of the UN introduced the issue of water rights in regard to the ICESC. The committee in November of 2002 introduced “Comment 15” in regard to the human right to water. Article 2 of the Comment states that “The human right to water entitles everyone to sufficient, safe, acceptable, physically accessible and affordable water for personal and domestic uses” (United Nations, 2002, p. 2). Although comments by ECOSOC are non-binding, they do provide an outline for states to follow.

In this case we can see that clearly the UN has addressed the right of the water and the use thereof. However, it is hard for a state to define the terms “sufficient” and “acceptable”.

Therefore, important questions arise such as: To what extent does this require states to provide a set amount of water? And how is that amount determined? Furthermore, because the comments are non-binding how does a state abide by such regulations and implement them in a practical manner. Moreover, how do states that may lack adequate resources and infrastructure to provide this right of access to water? These are the types of issues that are being addressed on a state-by-state basis and have a variety of different outcomes and implementations. Developing countries that do not have the resources to develop water infrastructure in rural areas are at a disadvantage. The state is then tasked with finding means in which water can be provided to its citizenry. Without a binding UN treaty states are at their own whim to live up to the standard of providing access to water. As will be seen in the following section, the citizenry does not always accept the means in which states go about attempting to provide access to water.

Issues Related to the Implementation of Access to Water

One instance that has proved to be troublesome is in the case of Cochabamba, Bolivia where the state privatized the mechanisms in which communities had access to water. In this case in 1999 and 2000, at the request of the World Bank, the Bolivian Government started accepting bids to privatize the use of water in it's third largest city, Cochabamba. Only one company placed a bid for the project and therefore won outright. The contract agreement provided the promise of a 16 percent return on investment. This led to a drastic increase in the cost of water for the citizens of Cochabamba who in turn revolted against the government to cancel the contract and return to the lower subsidized rates.

Beyond the access of quality water and the protest of citizenries to encourage governments to continue to provide reasonable pricing structures for water, states may also find the access to water on a national level a contentious issue. This provides for a unique case-by-

case basis in which states approach the issue of the human right to water. If it is implemented in a way in which the citizenry is negatively affected states need to find a way to implement these water access programs in a manner that softens the economic impact for those who see a change in the way water is dealt with. This puts the state in a dilemma where cost-recovery mechanisms for the maintenance and operation of the water systems become an economic burden on the state.

More important is the control of water for governments and states within their regions. Areas that are especially prone to the scarcity of water are more prone to contention. This can be seen when looking at the Middle East and North Africa. “After signing a peace agreement with Israel in 1979, Egyptian President Anwar Sadat announced that the only issue that would prompt Egypt to declare war again would be water” (Dinar, 2007, p. 23). Clearly the president of Egypt places the access to water as a national security issue. There are several arguments as to why states may take this stance. First is that as populations increase throughout the world the scarcity of access to water, especially in regions that already have limited access to water is only bound to increase. The importance of states to have access to water so that they can provide that water to their citizenry, provide for agricultural and industrial development should be a priority for any state. This is a developmental argument for the state. Second, if an increase in the scarcity of water and access to it occurs in a state than citizenries are more likely to show discontent with their governments. This can provide for both internal and external conflict.

There are also arguments on how water should be distributed within a state and to what extent the different levels of society should play a role in providing access to water. “The debate over water supply governance and how control should be shared among citizens, the state and the private sector centers around three idealized models of resource management: the state planning model, the market model and the community model” (Jayyousi, 2008, p. 127-128). At this level,

the economic burden put on the state becomes apparent. If there is not some sort of public-private partnership or a mechanism in which states can pay for the water systems then contention is likely to increase. As Jayyousi points out, there are three different models that states should use. On the planning level the state can take on the issue of planning for the proper distribution of water and provide for long-term goals ensuring there is a continued increase in access to water and ways in which the systems can be maintained. In the context of the market model, states need to address the access to water in a sufficient manner. As we have seen in the Cochabamba case, this may be a very difficult task. It's hard for a state to incentivize private ownership in water distribution systems if the citizenry of a country is greatly affected. The implications of the market model will be further discussed in the following section.

In regard to the community model of access to water, communities need to be educated and incentivized to decrease the waste of water. There are a variety of mechanisms that can be implemented on the state level that allow for communities to utilize their water supply efficiently. One such mechanism may be the taxation on wasted water. However, this may provide another obstacle for states because of the need to monitor how water is used. In partnership with proper education on irrigation uses and the consumption of household domestic water use citizens can learn how to utilize water more efficiently. Another type of program that may provide for increased efficiency of water use is to charge for water on a level of use basis. A standard level of water use can be determined on a per-person, per-household, or per-acreage level. Thus, when waste is detected, the state can increase the price, as water use is deemed "wasteful". This may furthermore place a burden on the state but with the proper organizations and institutions involved to ensure there is not exploitation by the state. Apolitical and unbiased

organizations can then be created to ensure the proper use of water. International monitoring and involvement may also increase the success and efficiency of this approach.

Environmental Issues in Regards to Water as a Human Right

"The UN concept for water as a human right is characterized as a people-centred approach to development, not recognizing the 'water rights' of an environment (or natural capital) in an equal manner" (Jayyousi, 2008, p. 128). As the world faces a changing climate that is fueled by human actions, it is important to note that the right of access to water supersedes the protection of the environment. This is an important distinction to make. In contrast, it can be argued that the protection of the environment and the access to water should be on par with one another. Without the proper protection of the environment, future generations will not be able to enjoy the environment and reap the benefits of it. This is an important issue that coincides with the proper implementation of access to water and its use as discussed above. The issue of the environment and access to water then becomes a balancing act that is likely to increase in contention as the world develops and seeks for more access to water.

Another challenge with the access to water is that if it is provided for free or at a heavily discounted rate the environment may be disregarded. This becomes another contentious issue for states to address, because if there is not enough of an incentive to properly use water than individuals become wasteful. This is a challenge for a state in both educating its citizenry about the importance of proper water use and the protection of the environment for future generations. As discussed previously, this issue can be addressed by the proper implementation of mechanisms and institutions on the state level, but with a focus on the community model.

The key for states to deal with environmental issues and sustaining water access falls on the governance of water and its use. The literature argues that to incentivize the proper use of water it should be seen as an economic good, rather than an inherent social right. This allows the market to be able to create incentives to the proper use of water use discourage against waste. However a key argument is that those who need access to clean water the most, are those in poor areas who do not have the economic means to purchase water without government subsides or programs. Additionally, those that do not have access to water are typically those in rural areas where there is a lack of infrastructure to even provide access to water. Once again problems arise in regards to the return on the investment of developing water infrastructure. With out the monetary incentive states and/or private enterprise do not have an incentive to develop and maintain the needed infrastructure. The problem can be addressed with proper policy implementation where states seek to provide to those with the most need in an economic manner that best suits their economic standing. This is an advantageous strategy for states because an increase in access to water for it's citizenry allows for further development of the state on both economic and social levels. Moreover, once states have successfully provided for access to water, focus on other important developmental issues can be addressed.

Furthermore it is argued that international human rights law and international water law should provide for the access to water. It is argued that when "reading international water law in the light of human rights law leaves no doubt as to the priority of water utilization for basic human needs over other water uses" (Bourquain, 2008, p. 207). The distinction here between the protection of the environment and human access to water becomes clear. Once again we see the need for the access to water being a priority for states. This further negates the idea that the environment should be protected when looking at providing water. This argument however only

gets at the core issue of providing access to water to humans, and does not look at the level of which water is used in agriculture and industry. This provides another burden for the state in the sense that agriculture and industry must be further regulated in their consumption of water. This plays into the argument that states need to develop mechanisms and institutions that regulate the wastefulness of water.

Questions then arise that “if a human right to water can be asserted as a right, then what is to become of broader social considerations such as pollution controls? Are they imposed as limitations to the right or are they part of the balancing between human needs and environmental concerns?” (Hammer, 2003, p. 136). If there are clear economic incentives for the private sector to reduce their wasteful activities of water then they are bound to increase the efficiency of their use of water. This can in turn then provide for better protection of the environment. These types of regulations are seen in the developed countries but rarely are seen in developing countries. In developing countries, if proper taxation mechanisms and institutions are created for the wasteful use of water, the money that is gained as a result can be put into the development of infrastructure for the poor and rural communities that may not have access to water.

The Economic Function and the Problem of Water as a Human Right

Another issue that is raised in regard to providing access to water as a basic human right is that “one person’s claim to water can diminish the possible economic uses of the resource” (Hammer, 2004, p. 135). This furthers the problem of markets that may not be able to function properly because of state intervention. This can negatively impact the access of water for economic uses such as for industry or agriculture. Additionally the economic well being of individuals is also affected if the free market is not allowed to function. This further provides evidence and arguments for water as an economic good and not solely a fundamental human

right. Thus, governments and their citizenries must find a balance between maintaining the market system and maintaining water as a human right. This can only be done with proper governance structures in which the balance is regulated at all levels within the framework of the international system.

On the national level governments must ensure open markets that allow for access to water to those who can afford it and create institutions and mechanisms that allow access to those who cannot afford it. As mentioned previously, states can use the revenue of private enterprise that are already profiting from the use of water in industry and agriculture to subsidize the cost of water to the poorer parts of the population. This revenue can be gained through the determination of the wasteful use of water. Although this may only provide for a short-term income flow as private enterprise increases its efficiency, governments will be able to develop infrastructure and discover other mechanisms that allow for further development.

Internationally, organizations such as the United Nations need to continue to develop and define human rights for the development of the world as a whole. Mechanisms need to be created, potentially with the cooperation of Non-Governmental Organizations (NGOs) to ensure that the right to water is being delegated properly and efficiently throughout the globe. Furthermore ensuring that access is being provided to those with the most need. Without the cooperation of states on an international level, water access will become a greater burden on the international system and may introduce conflict.

Conclusion

The purpose of this paper was to address water as a human right on the international level. How can states in the international system address the access to water and how have international organizations such as the United Nations attempted to define the right to water

access. Furthermore, this paper examined the important conflicts that face states in regard to providing access to water. In conclusion, states must provide access to water in a way that both benefits its citizenry and also provides for a functioning market model. Incentives within states and state planning are adequate ways of providing for the market model. With the use and development of mechanisms and institutions that prevent the “wastefulness” of water, industry and agriculture can continue to thrive with respect towards the greater need of water as a human right. On the local level communities must be educated on the important aspects of water and its use. If states continue to address the importance of water as a human right they are bound to develop in a manner that will be both beneficial for the state as a whole, but also for the international system. Furthermore, international organizations and NGOs need to have increased presence in the realm of water rights and its use to ensure that the access to water is adequate and efficient. Water is the key to a prosperous future and must treated as such. After all, water is the key to our existence.

Works Cited

Bluemel, E. K. (2004). COMMENT: The Implications of Formulating a Human Right to Water. *Ecology Law Quarterly , 31*, 957-1051.

Bourquain, K. (2008). *International Studies in Human Rights, Volume 97: Freshwater Access from a Human Rights Perspective A Challenge to International Water and Human Rights Law.* Leiden, Netherlands: Martinus Nijhoff Publishers .

Dinar, S. (2007). Water Wars? Conflict, Cooperation, and Negotiation over Transboundary Water. In V. Grover, *Water: A Source of Conflict or Cooperation?* (pp. 21-38). Enfield, New Hampsire: Science Publishers.

Hammer, L. (2003). Indigenous Peoples as a Catalyst for Applying the Human Right to Water. *International Journal on Minority and Group Rights, 10*, (pp. 131-161). Netherlands: Koninklijke Brill NV.

Jayyousi, O. A. (2008). Water as a Human Right: Towards Civil Society Globalization. In A. K. Biswas, E. Rached, & C. Tortajada, *Water as a Human Right for the Middle East and North Afric* (pp. 121-131). New York, New York: Routledge.

Mehta, L. (2003). Problems of Publicness and Access Rights: Perspectives from the Water Domain. In I. Kaul, P. Conceicao, K. Le Goulven, & R. Mendoza, *Providing Global Public Goods: Managing Globalization* (pp. 556-575). New York, New York: Oxford.

United Nations. Economic and Social Council. (11-29 November 2002). *Substantive Issues Arising in the Implementation of the International Covenant on Economic, Social and Cultural Rights* (Twenty-ninth session ed.) (E/C.12/2002/11). Geneva: United Nations